Newsmax Privacy Policy

Effective Date: June 28, 2023

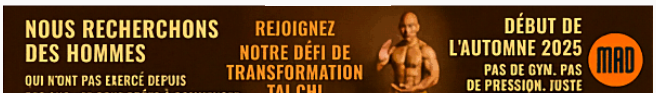
Newsmax Media, Inc., and its affiliates ("Newsmax," "we," "us," or "our") provides this Privacy Policy to explain the information practices of sites we own and operate including newsmax.com, newsmaxtv.com, w3.newsmax.com, shop.newsmax.com, simplehearttest.com, and any affiliated sites (collectively, the "Sites") that link to this Privacy Policy, as well as makes the same or similar content available via e-mail ("E-mail Content") and to mobile devices via its apps ("Mobile Content"). Newsmax also offers free headlines for personal, non-commercial use via Really Simple Syndication (RSS 2.0) ("Feeds"). The Sites, E-mail Content, Mobile Content, Feeds, subscription services offered by Newsmax ("Services"), and all related content and products thereto, are collectively referred to herein as "Newsmax Offerings." BY USING THE NEWSMAX OFFERINGS, YOU SIGNIFY YOUR ACCEPTANCE OF THIS PRIVACY POLICY AND OF OUR PROCESSING YOUR PERSONAL DATA IN ACCORDANCE WITH THE TERMS OF THIS PRIVACY POLICY. IF YOU DO NOT AGREE TO THIS PRIVACY POLICY, YOU SHOULD NOT USE THE NEWSMAX OFFERINGS.

This Privacy Policy explains how we collect Personal Data (as defined below) about you on the Newsmax Offerings, how we collect, use, and protect such data, and the choices you have concerning our use of such data. Please read this Privacy Policy carefully. This Privacy Policy represents our current (as of the last revised date, above) data collection and usage practices.

This Privacy Policy applies only to information collected by the Newsmax Offerings. We are not responsible for the privacy of any information (i) that you reveal or post in any public forum that may be or in the future become available on the Newsmax Offerings, such as message boards or chat rooms, (ii) that is available to the general public through no action or fault of Newsmax, (iii) that Newsmax receives from any third party reasonably known to have a legal right to transmit such information and under no obligation to keep such information confidential, or (iv) that originates from websites that are operated or owned by third parties that may be linked to or from the Newsmax Offerings.

Data Collection

"Personal Data" is information that identifies you or can be used to identify or contact you. Newsmax collects Personal Data from you when you enroll in, subscribe to, or agree to purchase any of our goods and services, register for news alerts on the Newsmax Offerings, or voluntarily provide it to us. We may collect information such as name, postal address, zip code, e-mail address, phone



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In addition to information collected during registration, enrollment, subscription, or purchase, Newsmax collects Personal Data when provided by you to the Newsmax Offerings such as through email, online forms, order and registration forms, surveys, polls, sweepstakes, customer service interactions, data provided through commenting features, and contest entries. This may include sensitive Personal Data (as defined in certain jurisdictions) including religious affiliation and health information. Newsmax and our service providers may automatically collect Personal Data relating to your interactions with us and our Site, including computer or device type, IP address or other device identifiers, browser information, app usage data, information collected through cookies and other technologies, demographic information, statistical and aggregated information. We may use Personal Data to help us understand who uses the Newsmax Offerings and to improve Newsmax's websites.

Use of Cookies, Web Beacons, and Similar Technology

To enhance the Internet experience on the Newsmax Offerings, Newsmax and service providers it engages may use various Internet technologies such as, 'cookies,' 'web beacons/web bugs,' 'action tags,' '.gif tags,' and 'JavaScript.'. The tools are placed on your computer in order to identify your Web browser and the activities of your computer on the Newsmax Offerings. Newsmax uses these technologies to customize and enhance the Internet experience of individual users. See the **Digital Advertising & Analytics** section of this Privacy Policy to learn more about the use of this information and the choices available to you. You may decline Internet cookies by using the appropriate feature of your Web browser software, if available. If cookies are disabled, however, all features of the Newsmax Offerings may not operate as intended. Information about the procedure you are required to follow in order to disable cookies can be found on your Internet browser provider's website.

For more information on our use of these technologies, see our **Cookie & Similar Technologies Policy**.

Use and Sharing of Personal Data

Newsmax may use Personal Data it collects for any lawful business or commercial purpose, including for editorial, feedback, and marketing purposes, and delivering relevant advertising, analyzing users' behavior, communicating with you, developing products, delivering products and services, providing customer support, customizing and improving the content and layout of the Newsmax Offerings, completing business transactions, administering orders for goods through our website store(s), administering individual accounts, processing applications for employment, meeting government regulatory requirements such as sales tax collection, maintaining the security of our Sites, and as otherwise disclosed at the time of collection or use. Newsmax may share data with service providers to perform services for us, affiliates, and subsidiaries in connection with the services we provide, including with these other businesses within our corporate family: Humanix Books, Newsmax Broadcasting, Medix Select, and Crown Atlantic. Newsmax uses service providers to provide e-mail and direct mail services to Newsmax.

Contact information for texting groups will not be shared to third parties.

Newsmax may share the information with unaffiliated third parties if we believe in good faith that such disclosure is necessary (a) to comply with applicable laws, rules, or regulations, or to preserve Newsmax's legal rights in the Newsmax

advertising for products you may be interested in, or products you requested or consented to and to allow us to perform other activities related to such services and products; or (c) to operate these Newsmax Offerings and other of Newsmax's systems.

Newsmax may share information with a sponsor or other third party that is interested in providing you with products and services ("Third-Party Providers"). You may instruct us at any time not to share your Personal Data with such Third-Party Providers by clicking the "Do Not Sell or Share My Personal Information" link in the webpage footer.

We may share data that has been deidentified or aggregated to the extent permitted by applicable law. When we use deidentified data, we maintain and use the data in deidentified form and do not attempt to reidentify it, except to check whether our deidentification processes satisfy the requirements of applicable law.

Newsmax reserves the right to transfer the information it collects to successors to the relevant portion of any of Newsmax's businesses or to independent contractors it engages to assist with or perform on Newsmax's behalf any of the foregoing activities. Also, if Newsmax's assets are subject to a claim in bankruptcy, Personal Data may be an asset subject to the claims of a trustee in bankruptcy and may be available to Newsmax's creditors. Newsmax reserves the right to use Personal Data to contact you regarding your account status and changes to this Privacy Policy or any other policies, agreements, or transactions relevant to your use of the Newsmax Offerings. Newsmax will take reasonable steps to maintain the integrity of the collected data so that it is reliable and appropriate for the foregoing uses.

Digital Advertising and Analytics

We may partner with ad networks and other ad serving providers ("Advertising Providers") who serve ads on behalf of us and others on non-affiliated sites and mobile apps. Some of those ads may be personalized, meaning that they are intended to be relevant to you based on information Advertising Providers collect about your visits to the Site, other sites or apps, and elsewhere over time, including that data across associated devices. This type of advertising is known as interest-based advertising.

Newsmax adheres to the Digital Advertising Alliance ("DAA") Self-Regulatory Principles and to the European Digital Advertising Alliance ("EDAA") Principles in the European Union ("EU") in connection with this interest-based advertising activity. U.S. individuals may visit **http://www.aboutads.info/choices** while EU individuals can visit **http://www.youronlinechoices.com** to learn more about this type of advertising and how to opt out of this advertising by companies participating in these consumer choice tools. You may also use tools provided by mobile operating system providers, such as limit ad tracking, to opt-out of interest-based advertising on your mobile device to opt-out of interest-based advertising on your mobile device. Your choices will apply to this browser or mobile device. If you delete your cookies or use a different browser or mobile device, you may need to renew your opt-out choice. Note that electing to opt out will not stop advertising from appearing in your browser or applications. It may make the ads you see less relevant to your interests.

We may also work with third parties that collect data about your use of the Sites and other sites or apps over time for non-advertising purposes. Newsmax uses Google Analytics and other third-party services to improve the performance of the

https://www.google.com/policies/privacy/partners/, and to opt out of Google Analytics, visit **https://tools.google.com/dlpage/gaoptout/**.

International Visitors

This section applies to those that visit our website from the European Economic Area ("EEA"), United Kingdom ("UK"), and Switzerland.

Newsmax processes Personal Data with your consent (e.g., when Newsmax processes Personal Data to provide goods and services you request, such as to provide Personal Data to third parties at your direction).

On other occasions, Newsmax may process Personal Data when it needs to do this to fulfill a contract or where required to do this by law. This includes processing your Personal Data when you subscribe to publications or purchase products.

If necessary, Newsmax may also process Personal Data when it is in Newsmax's legitimate interests to do this (e.g., for customer service or to respond to your requests for information) and when these interests are not overridden by your data protection rights.

Our sharing of your Personal Data may involve transferring your data outside the EEA, UK, and/or Switzerland, Whenever we transfer your personal data out of these areas, we ensure a similar degree of protection is afforded to it by implementing, where required by law, safeguards such as using the Standard Contractual Clauses approved by the European Commission to give Personal Data the same protection it has in Europe. If you are located outside of the United States, please be advised that we process and store Personal Data in the United States.

You have a right to the following:

- To request access to the Personal Data we hold about you;
- To request that we rectify or erase your Personal Data;
- To request that we restrict or block the processing of your Personal Data;
- Under certain circumstances, to receive Personal Data about you that we store and transmit to another without hindrance from us, including requesting that we provide your Personal Data directly to another, i.e., a right to data portability; and
- Where we previously obtained your consent, to withdraw consent to processing your Personal Data.

To exercise these rights, contact our Data Protection Officer using the "Contact Us" section below. Please be aware that Newsmax may be unable to afford these rights to you under certain circumstances, such as if we are legally prevented from doing so.

Additionally, you have the right to lodge a complaint against us. To do so, contact the supervisory authority in your country of residence.

State Privacy Rights

California, Colorado, Connecticut, Utah, and Virginia (collectively "Certain States") residents have certain rights under state privacy laws with respect to Personal Data we collect. If you are a resident of Certain States, this section of the Privacy Policy contains disclosures required by law and explains rights that may be available to you. Consumers with disabilities may access this notice by using a standard screen reader.

Personal Data We Collect and Disclose. In the preceding 12 months, Newsmax collected and disclosed the following categories of Personal Data:

- Personal and online identifiers (such as first and last name, email address, postal address, phone number, or unique online identifiers);
- Recordkeeping information (such as physical characteristics or description, bank account number, credit card number, debit card number, or any other financial information, or health information);
- Characteristics of legally protected classifications (such as gender or religious affiliation);
- Commercial or transactions information (such as products or services purchased, obtained, or considered);
- Internet or other electronic network activity information (such as browsing history, search history, interactions with a website, email, application, or advertisement);
- Coarse geolocation information;
- Professional or employment-related information;
- Inferences drawn from the above information about your predicted characteristics and preferences; and
- Other information about you that is linked to the personal information above.

We do not knowingly sell or share Personal Data of individuals under 16. Some of the categories of Personal Data listed above are considered “sensitive” Personal Data under applicable state law. We use or disclose sensitive Personal Data for the commercial and business purposes described in the Use and Sharing of Personal Data section of this Privacy Policy.

Categories of Sources. We collect Personal Data from the following categories of sources:

- You;
- Our affiliates and subsidiaries;
- Our service providers;
- Third parties and social media networks; and
- Advertising companies and networks.

Our Purposes for Processing Personal Data. We use, disclose, share, or sell the Personal Data we collect for our commercial and business purposes, as further described above in the “Use and Sharing of Personal Data” section of this Privacy Policy.

Recipients of Personal Data. In the preceding 12 months, we disclosed, shared, or sold the categories of Personal Data designated above to the following categories of third parties for commercial and business purposes:

- Our affiliates and subsidiaries;
- Our service providers;
- Ad companies or networks;
- Social media networks; and
- Third-Party Providers.

Your Rights. Residents of Certain States have rights with respect to the Personal Data collected by Newsmax. You may be able exercise the following rights regarding Personal Data, subject to certain exceptions and limitations:

- The **right to confirm** whether we are processing Personal Data about you.
- The **right to correct inaccuracies** in the Personal Data we have collected about you.
- The **right to know** the categories and specific pieces of Personal Data we collect, use, disclose, and sell about you; the categories of sources from which we collected Personal Data about you; our purposes for collecting or selling Personal Data about you; the categories of Personal Data about you that we have sold or disclosed for a business purpose; and the categories of third parties with which we have shared Personal Data.
- The **right to request that we delete** the Personal Data we have collected about you.
- The **right to opt** out of the sharing of personal data for interest-based advertising or the sale of personal data. Please note that if you opt out of certain practices, we may be unable to provide you with some services.
- Depending on your state, the **right to receive a portable and readily usable copy** of the personal data we have collected about you, to the extent feasible.
- Depending on your state, the **right to limit our processing of certain “sensitive” personal data** (or to withdraw consent for such processing if you previously gave it).
- The **right not to receive discriminatory treatment** for the exercise of the above privacy rights.

To exercise any of the above rights, please contact us using the following information and submit the required verifying information:

- By emailing us at **dataprivacy@newsmax.com** with the subject line “Privacy Inquiry”
- By calling us at 1 (800) 485-4350

Additionally, for Colorado, Connecticut, and Virginia residents, if you have submitted a request that we have not reasonably fulfilled, you may contact us to

Verification Process and Required Information: Note that we may need to request additional information from you to verify your identity or understand the scope of your request, although you will not be required to create an account with us to submit a request or have it fulfilled. We will require you to provide, at a minimum, your name, email address, and phone number.

Authorized Agent: You may also designate an authorized agent to make requests on your behalf by designating such an agent in writing or through a power of attorney. We will require the agent to provide us with proof that you have authorized the agent to make requests on your behalf prior to accepting requests from the agent.

Retention

We will process and store your information only for the period necessary to achieve the purpose of the storage, or as permitted by law. The criteria used to determine the period of storage of information is the respective statutory retention period or Newsmax internal data retention policies. After expiration of that period, the corresponding information is routinely deleted, as long as it is no longer necessary for the fulfillment of a contract or the initiation of a contract.

Third Party Links and Tools

The Newsmax Offerings may contain links to other websites maintained by third parties, including social media pages, either as a hyperlink or through a direct data feed accessed by you. Newsmax does not control, endorse, and is not responsible for, the privacy practices or the content of these websites. You should review the applicable privacy policies in connection with your use of such third-party websites.

The Newsmax Offerings may also include integrated social media tools or “plug-ins,” such as social networking tools offered by third parties. If you use these tools to share Personal Data or you otherwise interact with these features on the Sites, those companies may collect information about you and may use and share such information in accordance with your account settings, including by sharing such information with the general public. Your interactions with these third parties are governed by their privacy notices. We encourage you to carefully read the privacy notices of any accounts you create and use.

Security Measures

Newsmax has established reasonable precautions to help protect collected Personal Data from loss, misuse, unauthorized access, disclosure, alteration, or destruction. Please note that while Newsmax has endeavored to create secure and reliable sites and mobile application(s) for users, the confidentiality of any communication or material transmitted to/from Newsmax or the Newsmax Offerings or via e-mail cannot be guaranteed.

Changes to Our Privacy Notice

Newsmax will from time-to-time review and revise these practices. We will post any changes to this Privacy Policy here. Please refer to this Privacy Policy on a regular basis.

Contact Information for Newsmax

To contact Newsmax in its role as a data controller, please contact us in the

If you choose to contact Newsmax via e-mail regarding this Privacy Policy, or Other Agreements, please e-mail **terms@newsmax.com** and mark the subject heading of your e-mail “Privacy Inquiry” or “Purchaser/Subscriber Inquiry,” respectively;

If you would like to contact a Newsmax’s customer service agent, and for questions or concerns regarding Newsmax’s data protection practices, e-mail customerservice@newsmax.com;

If you would like to contact Newsmax’s copyright agent, e-mail **copyright@newsmax.com**; or
To contact us via postal mail: Newsmax Media, P.O. Box 20989, West Palm Beach, FL 33416.

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